

Rajendra Dev Tivari v. State of U.P. — electricity-bill recovery writ dismissed for Supply Code remedy

High Court of Judicature at Allahabad · Division Bench · 1 December 2015 · Writ-C No. 63950 of 2015 · WRIT - C No. 63950 of 2015 · **Writ dismissed with liberty to pursue Electricity Supply Code, 2005 remedy.**

HEADNOTE

A Division Bench of the Allahabad High Court dismissed a writ petition challenging recovery of an electricity bill demanded by the Electricity Board. Nobody appeared for the petitioner even on the revised call. The Court held that a person aggrieved by such a demand has a remedy under the Electricity Supply Code, 2005, and dismissed the petition with liberty to pursue that remedy.

FACTUAL SUMMARY

Rajendra Dev Tivari petitioned the Allahabad High Court against the State of Uttar Pradesh and three others over recovery of an electricity bill demanded by the Electricity Board. Counsel were Arun Kumar Verma for the petitioner and the Chief Standing Counsel with Shivam Yadav for the respondents. On 1 December 2015 the Division Bench called the matter in Court No. 10; nobody appeared even on the revised list.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

electricity-bill-recovery-writ

HOLDING

Where a petitioner is aggrieved by recovery of an electricity bill demanded by the Electricity Board, the remedy lies under the Electricity Supply Code, 2005; a writ petition is dismissed with liberty to pursue that remedy. ¶ 1

FLAG Order invokes the Electricity Supply Code, 2005 without identifying any clause.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY BILL AND RECOVERY DEMAND WERE LEGALLY DUE

No merits finding; liberty granted to pursue the Supply Code, 2005 remedy. ¶ 1